



Great British Energy Act 2025

CHAPTER 16

Explanatory Notes have been produced to assist in the understanding of this Act and are available separately



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Great British Energy Act 2025

2025 CHAPTER 16

An Act to make provision about Great British Energy. [15th May 2025]

BE IT ENACTED by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1 Great British Energy

- (1) The Secretary of State may by notice designate a company as Great British Energy.
- (2) A company may be designated under this section only if—
 - (a) it is limited by shares, and
 - (b) it is wholly owned by the Crown.
- (3) A notice under subsection (1)—
 - (a) must specify the time from which the designation has effect, and
 - (b) must be published by the Secretary of State as soon as reasonably practicable after the notice is given.
- (4) The designation of a company terminates—
 - (a) if the company ceases to be wholly owned by the Crown, or
 - (b) if the Secretary of State revokes the designation by notice.
- (5) A notice under subsection (4)(b)—
 - (a) must specify the time from which the revocation has effect, and
 - (b) must be published by the Secretary of State as soon as reasonably practicable after the notice is given.
- (6) For the purposes of this section a company is wholly owned by the Crown if each share in the company is held by—
 - (a) a Minister of the Crown,
 - (b) a company which is wholly owned by the Crown, or

- (c) a nominee of a person falling within paragraph (a) or (b).
- (7) Great British Energy is exempt from the requirements of the Companies Act 2006 relating to the use of “limited” as part of its name.
- (8) In this section—
 - “company” means a company registered under the Companies Act 2006;
 - “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975 (see section 8(1) of that Act).

2 Crown status

- (1) Great British Energy is not to be regarded as a servant or agent of the Crown or as enjoying any status, immunity or privilege of the Crown.
- (2) Great British Energy’s property is not to be regarded as property of, or property held on behalf of, the Crown.

3 Objects

- (1) Great British Energy must secure that its articles of association contain a statement of its objects.
- (2) The statement must provide that Great British Energy’s objects are restricted to facilitating, encouraging and participating in—
 - (a) the production, distribution, storage and supply of clean energy,
 - (b) the reduction of greenhouse gas emissions from energy produced from fossil fuels,
 - (c) improvements in energy efficiency,
 - (d) measures for ensuring the security of the supply of energy, and
 - (e) measures for ensuring that slavery and human trafficking is not taking place in its business or supply chains,(including through projects involving or benefiting local communities).
- (3) In this section—
 - “clean energy” means energy produced from sources other than fossil fuels;
 - “distribution”, in relation to clean energy, includes its conveyance and transmission;
 - “fossil fuel” has the meaning given by section 32M of the Electricity Act 1989;
 - “greenhouse gas” has the same meaning as in the Climate Change Act 2008 (see section 92 of that Act).

4 Financial assistance

- (1) The Secretary of State may provide financial assistance to Great British Energy.
- (2) Financial assistance under this section may be provided in any form and in particular may be provided—
 - (a) by way of grant, loan, guarantee or indemnity,

- (b) by the acquisition of shares or any other interest in, or securities of, a body corporate,
 - (c) by the acquisition of any undertaking or of any assets,
 - (d) pursuant to a contract, or
 - (e) by incurring expenditure for the benefit of Great British Energy.
- (3) Financial assistance under this section may be provided subject to any conditions the Secretary of State considers appropriate.
- (4) The power to provide financial assistance under this section is in addition to (and does not limit or replace) any other power of a Minister of the Crown to provide financial assistance.
- (5) “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975 (see section 8(1) of that Act).

5 Strategic priorities and plans

- (1) The Secretary of State must prepare a statement of strategic priorities for Great British Energy.
- (2) The Secretary of State must comply with subsection (1) within the period of six months beginning with the day on which this Act comes into force.
- (3) The Secretary of State may revise or replace the statement.
- (4) The Secretary of State must lay a copy of the statement, and of any revised or replacement statement, before Parliament.
- (5) The Secretary of State must not, without the consent of the Scottish Ministers, include in a statement under this section anything which concerns a matter provision about which would be within the legislative competence of the Scottish Parliament, if contained in an Act of that Parliament.
- (6) The Secretary of State must not, without the consent of the Welsh Ministers, include in a statement under this section anything which concerns a matter provision about which would be within the legislative competence of Senedd Cymru, if contained in an Act of the Senedd.
- (7) The Secretary of State must not, without the consent of the Department for the Economy in Northern Ireland, include in a statement under this section anything which concerns a matter provision about which—
 - (a) would be within the legislative competence of the Northern Ireland Assembly, if it were contained in an Act of that Assembly, and
 - (b) would not, if it were contained in a Bill in the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State under section 8 of the Northern Ireland Act 1998.
- (8) Great British Energy must secure that its articles of association provide for it—
 - (a) to publish and act in accordance with strategic plans which reflect the Secretary of State’s statement, and

- (b) to update those plans whenever the Secretary of State revises or replaces the statement.

6 Directions

- (1) The Secretary of State may give specific or general directions to Great British Energy.
- (2) Great British Energy must comply with the directions.
- (3) Before giving a direction the Secretary of State must consult—
 - (a) Great British Energy, and
 - (b) such other persons as the Secretary of State considers appropriate.
- (4) The Secretary of State must publish and lay before Parliament any directions given to Great British Energy under this section.

7 Reviews of Great British Energy’s effectiveness

- (1) The Secretary of State must appoint an independent person to carry out reviews of the effectiveness of Great British Energy.
- (2) In carrying out the review, the independent person must have regard to the statement of strategic priorities prepared by the Secretary of State under section 5(1).
- (3) After each review, the independent person must—
 - (a) prepare a report of the review, and
 - (b) submit the report to the Secretary of State.
- (4) On receiving a report, the Secretary of State must—
 - (a) send a copy of the report to the Scottish Ministers, the Welsh Ministers and the Department for the Economy in Northern Ireland, and
 - (b) no less than 14 days after complying with paragraph (a)—
 - (i) publish the report, and
 - (ii) lay a copy of the report before Parliament.
- (5) The first report must be submitted to the Secretary of State within the period of 5 years beginning with the day on which this Act comes into force.
- (6) Subsequent reports must be submitted to the Secretary of State at intervals of not more than 5 years.
- (7) In this section, references to an “independent person” are to a person who appears to the Secretary of State to be independent of—
 - (a) the Secretary of State, and
 - (b) Great British Energy.

8 Annual accounts and reports

- (1) Great British Energy must, as soon as reasonably practicable after its directors comply with section 441 of the Companies Act 2006 in relation to a financial

year, deliver to the Secretary of State a copy of the accounts and reports required to be delivered to the registrar for that financial year in accordance with that section.

- (2) The Secretary of State must lay a copy of those accounts and reports before Parliament.

9 Sustainable development

Great British Energy must keep under review the impact of its activities on the achievement of sustainable development in the United Kingdom.

10 Extent, commencement and short title

- (1) This Act extends to England and Wales, Scotland and Northern Ireland.
- (2) This Act comes into force on the day on which it is passed.
- (3) This Act may be cited as the Great British Energy Act 2025.



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